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File No.: EXP202209001

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on August 1, 2022. The complaint is directed against an individual identified as B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

"(...) the respondent, a neighbor of the complainant's adjoining property, has installed a surveillance camera on their property aimed at the complainant's property, more specifically at their pool, without having authorization for this" - page no. 1 -.

Images of the camera's location and the affected area are provided (Documentary Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on 01/09/22, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was duly received as evidenced by the acknowledgment of receipt in the file.

THIRD: On November 1, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing, considering the initial arguments presented to be insufficient.

FOURTH: On February 22, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

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FIFTH: On 02/01/23, a response was received from the respondent presenting documentary evidence regarding the facts subject to forwarding, as well as a "responsible declaration" for this purpose.

Documentary evidence (photograph 1) is provided, which certifies the presence of an informative sign, without proving where it is installed, limiting itself to stating the following "C.C.C." in the section designated for .

SIXTH: On 26/04/23, a was issued proposing a sanction amounting to 600 euros (300€+300€), for having a poorly oriented video surveillance device affecting a private area of a third party, with inadequate signage, which was duly notified to the respondent's address, resulting in at the destination, although leaving a notice in the mailbox as certified by the State Postal and Telegraph Society.

On 05/07/23, the was published in the BOE as the notification at the respondent's address was unsuccessful.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First: The facts arise from the complaint dated 01/08/22, through which the following is communicated to this agency:

"(...) the respondent, a neighbor of the complainant's adjoining property, has installed a surveillance camera on their property aimed at the complainant's property, more specifically at their pool, without having authorization for this" - page no. 1 -.

Second: The main responsible party is identified as B.B.B., with NIF ***NIF.1.

Third: It is recorded that the respondent has an informative sign, although it merely states "C.C.C.", which is insufficient to comply with the requirements of the current regulations.

Fourth: No screenshot (date and time) of what is captured by the installed device has been provided, nor has an explanation for the installation been given to this agency.

LEGAL GROUNDS

I

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of

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Digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In this case, the complainant states that the "camera is directed towards their private area," providing a photograph without date and time, without being able to specify what their private space is on a situational plan.

Notwithstanding the above, it is considered that the allegations are insufficient as they do not provide a "screenshot" of what is captured by the claimed camera or the specific orientation of the camera.

It is the respondent's freedom to install the camera on their private property, although it must preferably be directed towards their private space or provide a brief argument for its presence.

The content of Article 5.1 letter c) of the GDPR is presumed to be affected, which states: "Personal data shall be:

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');

It should be noted that individuals are responsible for ensuring that the systems installed comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

Article 72, paragraph 1, letter a) establishes a limitation period of three years for "infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

"a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

III

In this case, the alleged "irregularities" of the information sign are also examined, as it lacks an effective address to which any affected party can direct themselves in the context of data protection.

"The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an information device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679.

An internet connection code or address to this information may also be included in the information

device" (*the bold text belongs to this agency)—art. 22, paragraph 4 of the LOPDGDD--.

The aforementioned facts imply an infringement of the content of Article 13 of the GDPR, as it lacks informative sign(s) with an effective address to which one could direct themselves or indicate the main controller of the data processing.

Article 13 of the GDPR "Information to be provided when personal data are obtained from the data subject"

1. When personal data relating to a data subject are obtained from the data subject, the controller shall provide all the information indicated below at the time of obtaining such data: a) the identity and contact details of the controller and, where applicable, of the controller's representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing (...).

Article 72, paragraph 1 of the LOPDGDD (LO 3/2018, December 5) regarding the limitation period for very serious infringements "shall prescribe after three years" and in particular the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law.

IV

In accordance with the evidence available in this sanctioning procedure, it is considered that the respondent has a video surveillance camera system that is poorly oriented and deficient in terms of informative signage.

The evidence initially provided by the respondent is insufficient and demonstrates that the criteria established in the applicable regulations have not been taken into account, nor what is stated in the Video Surveillance Guide of this agency, which is freely accessible at www.aepd.es, where the requirements for informative signs and their location are clearly explained.

Whenever an image collection of individuals is to be carried out, the existence of such a video surveillance system must be communicated through the placement of an informative sign that is sufficiently visible at the access points to the monitored areas, which will clearly indicate a series of data related to the existence of the processing (video surveillance), whether it constitutes a file, the identity of the controller of the processing or the video surveillance system and its address, and the possibility of exercising the rights recognized in the Data Protection Regulations.

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of Data (access, rectification, erasure, restriction of processing, data portability, objection, and objection to automated individual decisions) and where to obtain more information about the processing of personal data.

The known facts constitute an infringement, attributable to the party being claimed against, for violation of the content of Article 13 of the GDPR.

V

Article 83.5 of the GDPR states the following: "Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9 (...)

b) The rights of data subjects under Articles 12 to 22 (...).

In determining the sanction, it is taken into account that it is an individual, although the initial response is considered insufficient regarding the measures adopted, which denotes at least negligent behavior, imposing a fine of 600 euros (300€ + 300€), for the irregularities in the information poster and the alleged misorientation of the camera, primarily affecting Articles 5.1 c) and 13 of the GDPR, with the sanction situated in the lower scale for this type of conduct based on the criteria of this agency.

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them correspond to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

It is noted that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may motivate such conduct to open a further administrative sanctioning procedure.

The party being claimed against must credibly demonstrate that the camera is oriented towards its private area (e.g., providing a photograph with date and time) or provide documentation that, in its case, proves this (e.g., model of responsible declaration, etc.) or make the necessary arguments to demonstrate the legality of the system in such a way that they are understandable to this Agency, without prejudice to proving that the informational signage complies with current regulations.

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It is reminded that, in the event of payment of the fine, it must also provide precise documentation proving that the necessary measures have been adopted regarding the informational poster, which will consist of a photograph (date and time) with the necessary modifications, as well as a brief explanation of the visible location where it has been installed so that it is understandable by this agency.

Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of the sanctions whose existence has been proven,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on Ms. B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) and 13 of the GDPR, classified under Article 83.5 a) and b) of the GDPR, a fine of 600€.

SECOND: TO NOTIFY this resolution to B.B.B..

THIRD: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within 15 working days, prove to have complied with the following measures:

- Completion of the informational poster in accordance with current regulations, providing a photograph with date and time for this purpose indicating the location of the duly formatted poster (e.g., indication of the responsible party, address for communication purposes, etc.).
- Remove and/or reorient the installed device in such a way that it can be verified that it is not directed towards the property of the claiming party, having to provide a screenshot with date and time for this purpose.

FOURTH: To warn the sanctioned party that they must pay the imposed fine once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXES-BBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once executive, if the date of executive action falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day, and if it falls between the 16th and the last day of each

month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that certifies the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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